STATE OF NEW YORK PUBLIC SERVICE COMMISSION
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CASE 19-G-0309 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of The Brooklyn Union Gas Company d/b/a National Grid NY for Gas Service.
CASE 19-G-0310 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of KeySpan Gas East Corp. d/b/a National Grid for Gas Service.
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July 31, 2019
7:00 p.m.

Suffolk County Legislature
William J. Lindsay County Complex
William H. Rogers Building #20
Rose Caracappa Auditorium
725 Veterans Memorial Highway
Smithtown, New York 11787

PUBLIC STATEMENT HEARING

TRANSCRIPTION OF PROCEEDINGS

BEFORE:

MAUREEN F. LEARY

REPORTED BY:

Kristina Trnka

PRESENT:

National Grid Staff

SPEAKERS:

Richard Berkley, Esq. Public Law Utility Project

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MS. LEARY: I'm going to call Case 19-G-0309 proceeding on motion of the Commission as to the rates, charges, rules, and regulations of The Brooklyn Union Gas Company d/b/a National Grid NY for gas service.

And Case 19-G-0310 proceeding on motion of the Commission as to the rates, charges, rules, and regulations of KeySpan Gas East Corp. d/b/a National Grid for gas service.

Good evening, everyone. Welcome to the public statement portion of this evening's session. My name, again, is Maureen Leary. I'm an administrative law judge with the Department of Public Service.

This public statement hearing was noticed by the secretary on July 10, 2019 and this hearing is for the purpose of giving members of the public the opportunity to provide the Commission with input on the rate filing by National Grid. That rate filing, as I indicated during the information session, was on April 30, 2019.

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It would increase gas rates in National Grid's service territory.

All of the statements given today will not only be heard by me, as the presiding judge in the case, but will also be transcribed by the court reporter who is sitting in front of the me. They will be included in the official record of the proceeding so that they can be considered by the Public Service Commission.

Today's hearing is not for the purpose of questions and answers. We did that during the information session. It's not an evidentiary hearing with cross-examination or the introduction of evidence. It is only for the purpose of providing you with the opportunity to make a statement that can be considered by the Commission and the company, of course, and other companies to the proceeding.

I only have one speaker this evening. If you would like to present a public statement, please fill out a registration card at the registration table

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outside of the room and I will call you up.

Please remember to speak slowly for the court reporter and clearly and speak into the microphone. Please summarize very lengthy statements, if you can. You can also submit lengthy statements to the Commission on the Commission's website under this case number.

This is not the only opportunity for you to comment. If you would prefer not to give a statement this evening but rather submit something in writing, there are a number of ways to do that. You can see the ladies out at the registration table or see me after the hearing.

Finally, please be respectful of all speakers and not interrupt. I will not respond to your statements. That's not the purpose of this evening. Please do not interpret my silence as an agreement or disagreement with your position. This is simply your opportunity to speak.

Are there any questions about the process as I just laid it out?

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(No verbal response given.)

Great.

Mr. Berkley, you are up.

MR. BERKLEY: Thank you, your Honor.

I will try to speak slowly enough.

Good evening, Judge Leary. And my thanks to the company and all the customers, advocates, and community groups and elected officials and media who are here tonight.

My name is Richard Berkley. I am the executive director of the Public Utility Law Project of New York. We are a 40 year old, nonprofit, public interest law firm. We have a unique mission in New York. We advocate on behalf of low and fixed income utility consumers.

I am here today to share our concerns on the National Grid Long Island, also know as KEDLI, proposed rate increase. We're an active party in this rate case and also in the KEDNY -- that is the Brooklyn Union Gas -- rate case, and several others around the state. The Con Edison New York City and Westchester, New York State

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electric and gas, Rochester gas and electric, and SUEZ Water and probably National Fuel Gas if they file this year. In all of those cases we will be submitting intervener testimony and rebuttal on behalf of the people who are the focus of our mission.

First, affordability. National Grid's originally filed for a six percent increase in rates on Long Island. It's been amended to be closer to eight percent. They originally asked for an increase of $49 million in year one, which is now roughly $60 million and more than $170 million over four years. I should point out that this doesn't include any additional costs that will arise from the moratorium to which I'll return in a moment.

Originally the increase was going to be $7.14 a month. It is now over $8 for average residential customers. That may seem like a small increase, especially compared to the 19 percent that Brooklyn is getting. But National Grid's gas rates are

already among the highest in New York State.

The company just got a 9.3 percent increase three years ago on their last rate case. The truth is that many National Grid customers already struggling to pay their bills. As you all know, Long Island is not an inexpensive place to live.

Earlier today I gave some statistics about Nassau County. I will do this very briefly now. Roughly 79,000 residents in Nassau County live in poverty. 11,000 of which are seniors age 65 or more.
22 percent of female-headed households with children live in poverty.

In Suffolk County more than 105,000 residents live in poverty, 13,000 of which are seniors above the age of 65 and more than 30,000 are children below the age of 18. 24 percent of female-headed households with children live below the poverty line.
41 percent of children in Suffolk County qualify under federal guidelines for a free or reduced cost lunch. If you add in the families that fit in the category of working

poor who are now are called asset-limited, income-constrained but employed, otherwise known as ALICE, 36 percent of Suffolk County residents are unable to pay all of their bills on a monthly basis and often are required to choose which bills remain unpaid at the end of the month.

Suffolk County has wonderful parks and natural resources and for decades has had an admiral quality of life. That's why you moved here and that's why you love to live here. But the household survival budget now is more than $97,000 annually or an hourly wage of about $49 per hour for a family of four to keep from slipping into poverty. How can that be affordable? How long can Long Islanders and residents in Suffolk County continue to survive against the crisis of unaffordability that the statistics of Nassau and Suffolk reveal? When will these ever increasing prices -- when will the cost of living stop going up?

If the Public Service Commission approves the company's rate increase

request, many New Yorkers residing on Long Island will no longer be able to afford to stay here. But no one should be forced to decide on a monthly basis whether to pay their rent; buy food or medicine for themselves, family members, or children; or whether to pay to keep their gas on in the winter.

PULP asks the Commission to scrutinize National Grid's rate request closely to make sure the rates customers are paying or being asked to pay are just and reasonable, affordable and fair and that that will be true after the rate increases sought by the company. And that as climate change continues to increase the ferocity of storms that hit this service territory, that the system will be reliable, resilient, and will survive and keep you all warm during hurricane season and winter.

Besides the rate increase, PULP has heard from both business customers and residents who are receiving notices indicating that the company will not provide

new gas connections. Recent stories in Newsday, the Wall Street Journal, and other news media have shown that start-up businesses may face many thousands of dollars of extra costs because of the failure to provide them with natural gas.

While National Grid's gas moratorium in Long Island and parts of Queens, Brooklyn, and Staten Island is not directly a part of this rate case, the effects it will have on customers should be considered in the rate case because it weighs heavily on public interest and will drive further expenses by the company and further bills for residents.

The question of how the company is going to mitigate the gas moratorium should be transparently analyzed in the context of a full investigation of the nature of the shortage and the company's failure and inability to do the job for which it was created. And let's not forget that the moratorium is halting economic development, which lowers employment and injures small

and large business alike on Long Island.

The company, as it has said, should be and is investing in creating safe and renewable energy options. It should be investing in reasonable methods also to lessen the gaps in capacity restraints that have triggered this crisis. National Grid's moratorium, which customers and elected officials from across Long Island, have said to PULP came quite abruptly and without notice, will likely force customers to make a decision to switch to heat pumps of one sort or another. This option will be extremely expensive and cost-prohibitive for low and moderate fixed income residential customers. And it is unclear at this time if LIPA's system will be able to handle such a significant change in usage if or when many or most Long Islanders move to heat pumps since we know there will not be a large move back to propane or other carbon intensive forms of heating.

On a side note, PULP is also concerned about how National Grid has been

using its customers' email addresses to lobby their elected officials to support the Williams or NESE Pipeline. We are not aware of any other utility in New York that is encouraging their customers through their personal email accounts to actively lobby in favor of this specific government action. Again, we ask that the Commission open a separate investigation into the moratorium and to determine what measures National Grid should have prudently taken to advert this foreseeable crisis.

In conclusion, as a party to this case, the Public Utility Law Project respectfully asks the Commission to scrutinize National Grid's rate request, to make sure that the rates Long Islanders are paying are just and reasonable, affordable and fair. And we also respectfully request the Commission to open an investigation into the gas moratorium. Thank you.

MS. LEARY: Thank you, Mr. Berkley. We are going to go off the record. I will keep the hearing open for the next

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50 minutes until 8:00 p.m. At that time if there are no further speakers the hearing will be closed.

(Whereupon, a recess was taken at this time.)

MS. LEARY: It is now just after 8:00 p.m. We have no further members of the public here to provide public statements. I'm going to close the hearing.

(Time Noted: 8:01 p.m.)

C E R T I F I C A T E

I, KRISTINA TRNKA, a shorthand reporter and Notary Public within and for the State of New York, do hereby certify:

I reported the proceedings in the within-titled matter, and that the within transcript is a true record of such proceedings.

I further certify that I am not related to any of the parties to this action by blood or marriage, and that I am in no way interested in the outcome of this matter.

IN WITNESS WHEREOF, I have hereunto set my hand this 5th day of August, 2019.

Kristina Trnka

KRISTINA TRNKA

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